The examination is being carried out on the **following application documents**

Description, Pages

2, 4, 10, 17, 24, 26, 28, 32, 42	as published	
1, 3, 5-9, 11-16, 18-23, 25, 27, 29-31, 33-41, 43-47	filed in electronic form on	04-09-2013

Claims, Numbers

1-7	filed in electronic form on	02-11-2016

Drawings, Sheets

1/5-5/5	as published

§§§§§

Cited document:

D1 WO 2007/078537 A1 (DOW GLOBAL TECHNOLOGIES INC [US]; MONCLA BRAD M [US]; WEVERS RONALD [N) 12 July 2007 (2007-07-12)

1. Newly filed claim set relates to a method (claims 1 to 6) and to an article (claim 7).

2. Article 84 EPC

2.1 The applicant has amended claim 1 in that the additive composition is in the form of a polyolefin dispersion (claim 1, lines 8 and 9), which is now in line with the product claim 7.

Furthermore, claim 1 claims inter alia .."and wherein the dispersion comprises from 35 to 65 percent by weight of one or more base polymers, based on the total weight of the solid content of the dispersion" (lines 17-19). The origin of this is based on page 6, lines 9 to 11 of the originally filed description.

However, the term "one or more base polymers" includes other polymers than polyolefin (see also page 6ff where thermoplastic material, olefin based polymers, acrylic based polymers, etc. are mentioned).

This inconsistency leads to doubt concerning the matter for which protection is sought, thereby rendering claim 1 unclear (Article 84 EPC). The inconsistency should be removed by amending claim 1 as already described in claim 7.

2.2 According to the applicant (see letter 4.9.13, page 4, paragraph 5) and according to the description on page 3, line 25 to page 4, line 4, page 5, line 14) it is clear that the feature "non-creping process" is essential to the definition of the invention.

Since independent claim 1 does not contain this feature it does not meet the requirement following from Article 84 EPC, taken in combination with Rule 43(1) and (3) EPC, that any independent claim must contain all the technical features essential to the definition of the invention.

3. Article 123(2) EPC

Claim 7 has been amended to refer to the additive composition as described in claim 1. However, the examining division is in doubt whether the wording of the new claim 7 actually fulfils the requirements of Article 123(2) EPC.

It is suggested to reformulate claim 7 in a product-by-process claim. For example: ..."wherein the additive composition has the form of a polyolefin dispersion.." , since the particle size diameter, the solid level of 40 to 60% and the amount of the polyolefin was originally only based on the dispersion and not on the article per se.

4. Articles 54 EPC and 56 EPC

On the condition that the deficiencies noted above are overcome, the objections raised in the last communication concerning novelty and inventive step would not longer stand.

5. The applicant is invited to file a new (independent) claim which takes account of the above comments.

When filing amended claims the applicant should at the same time bring the description into conformity with the amended claims. Care should be taken during revision, especially of the introductory portion and of any statements of problem or advantage, not to add subject-matter which extends beyond the content of the application as originally filed (Article 123(2) EPC).

Amendments should be made by filing replacement pages. Unnecessary recasting of the description should be avoided. An amended abstract is not required. The applicant should also take account of the requirements of Rule 50(1) EPC. According to Rule 50(1) in conjunction with Rule 49(8) EPC, amendments shall be typed or printed. Handwritten amendments may only be made in documents other than those replacing application documents (Rule 50(2) EPC); they may, for example, be used to fulfil the requirements of Rule 137(4) EPC (identifying amendments and indicating basis for them).

To meet the requirements of Rule 42(1)(b) EPC, D1 should be identified in the description and the relevant background art disclosed therein should be briefly discussed.